



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

OCT 10 2003

DOT-E 7285
(TWELFTH REVISION)

EXPIRATION DATE: September 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Arbel-Fauvet-Rail (AFR), Paris, France
(U.S. Agent: Mary-Hoyt Joyce
Chevy Chase, MD)

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the transportation in commerce of certain Division 2.1 and 2.2 gases in non-DOT specification IMO Type 5 portable tanks. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a), except as specified herein.
5. BASIS: This exemption is based on the application of (AFR) dated September 30, 2003, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Bromotrifluoromethane or Refrigerant Gas, R 13B1	2.2	UN1009	N\A
Chlorodifluoromethane or Refrigerant Gas, R 22	2.2	UN1018	N\A
Chloropentafluoroethane or Refrigerant Gas, R 115	2.2	UN1020	N\A
Chlorodifluoromethane and chloropentafluoroethane mixture or Refrigerant Gas, R 502 <i>with fixed boiling point, with approximately 49 percent chlorodifluoromethane</i>	2.2	UN1973	N\A
Chlorodifluorobromoethane or Refrigerant Gas, R 12B1	2.2	UN1974	N\A
1,1,1,2 Tetrafluoroethane or Refrigerant Gas, R 134a	2.2	UN3159	N\A

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification intermodal portable tank mounted inside an ISO frame, having a water capacity of 3436 gallons, a design pressure of 396 psig and a minimum service temperature of 0°F. Each tank must be designed and constructed in accordance with ISO Standards and Fauvet-Girel Drawings Nos. CO-165262A, dated April 8, 1975; CO-165275, dated May 22, 1975; CO-165257, dated March 4, 1975, and related drawings on file with the OHMEA. In addition, each tank must conform to the following:

- (1) Maximum gross weight of each tank may not exceed 52,920 pounds.

- (2) Each tank must be equipped with safety relief valves having a total relieving capacity of 26,830 SCFM air at 475 psig and set to discharge at 396 psig.
- (3) No product may be shipped that has venting requirements exceeding 26,830 SCFM. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association (CGA) pamphlet S-1.2.
- (4) The tank must be filled in accordance with the provisions of § 173.315.
- (5) Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

b. TESTING -

- (1) Each tank must be tested to at least 594 psig.
- (2) Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
- (3) Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; and (ii) be retested and reinspected in accordance with the provisions of § 173.32b except the use of an approval agency is not required.
- (4) A test report documenting a satisfactory ISO prototype frame test for this tank design must be on file with the OHMEA prior to the first shipment.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this exemption and the HMR.

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b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each portable tank must be plainly and durably marked on both sides near the middle, in letters and numbers at least two inches high on a contrasting background, "DOT-E 7285."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS:

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

b. The holder of this exemption, as identified in paragraph 1 above, must contact the OHMEA immediately after any of the tanks covered by this exemption are sold to another party.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln